

POLITY 25 - UNION TERRITORIES - ASCII PAGE 01/12

PANEL 01/12 - CONCEPT AND CURRENT MAP

Union Territory = territory of India governed under Part VIII, not ordinary Part VI Statehood.

Current 8 on 7 Sep 2026: A&N, Chandigarh, DNHDD, Delhi, J&K, Ladakh,
Lakshadweep and Puducherry.

Legislatures: Delhi, Puducherry, J&K. No legislature: the other five.

Answer line: common Union responsibility coexists with asymmetric local democracy.

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PANEL 02/12 - EVOLUTION AND ARTICLES 1-4

1874 scheduled districts -> Chief Commissioners -> 1950 Part C / Part D.

Seventh Amendment + States Reorganisation Act 1956 -> modern UT category.

Article 3 changes area, boundary, name or status; Article 4 handles Schedules by ordinary law.

Former UTs became States in 1971, 1972 and 1987; no automatic Statehood rule.

31 Oct 2019 J&K/Ladakh split; 26 Jan 2020 DNH-DD merger.

PANEL 03/12 - PART VIII SPINE

239 President through Administrator; adjoining Governor may act in separate UT capacity.

239A Fourteenth Amendment: ordinary-law legislature/CoM route for Puducherry.

239AA Delhi special NCT; 239AB Delhi breakdown; 239B Puducherry recess ordinance.

240 Presidential regulations; 241 High Courts; 242 Coorg repealed in 1956.

246(4) Parliament may legislate on any matter for territory not included in a State.

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PANEL 04/12 - ADMINISTRATION AND THREE LEGISLATURES

Title does not decide power: read Article -> Act -> rules -> judgment.

Delhi: Article 239AA constitutional Assembly.

Puducherry: Article 239A + Government of UT Act 1963 statutory Assembly.

J&K: J&K Reorganisation Act 2019; section 13 applies Article 239A.

All three have elected Councils; Parliament retains all-subject UT competence.

PANEL 05/12 - ORDINANCE, REGULATION AND LAW CONFLICT

239B: recess + urgency + prior Presidential instructions; six weeks after reassembly.

239AB: Delhi failure of machinery, not ordinance.

240: A&N, Lakshadweep, DNHDD, Puducherry conditionally; Ladakh via section 58.

Regulation may amend applicable law and has force of an Act of Parliament.

Repugnancy rules preserve local law space but permit Presidential assent and later override.

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PANEL 06/12 - COURTS, REPRESENTATION, LOCAL GOVERNMENT, FINANCE

Delhi own HC; J&K-Ladakh common HC; A&N Calcutta; Chandigarh Punjab and Haryana.

DNHDD Bombay; Lakshadweep Kerala; Puducherry Madras.

Lok Sabha: all UTs, current total 19. Rajya Sabha: Delhi 3, Puducherry 1, J&K 4.

Articles 243L/243ZB adapt Panchayat/Municipality Parts to UTs.

Fiscal, fund and GST design varies by territory and statute.

PANEL 07/12 - DELHI CONSTITUTIONAL TEXT

69th Amendment 1991 -> Articles 239AA/AB effective 1 Feb 1992.

Assembly: State + Concurrent fields except Entries 1 public order, 2 police, 18 land and related 64, 65, 66. Parliament retains every field.

CoM $\leq 10\%$; CM appointed by President; collective responsibility.

Aid/advice is ordinary rule; genuine difference may be referred exceptionally.

PANEL 08/12 - DELHI 2018 DOCTRINE

Government of NCT of Delhi v Union of India, 4 Jul 2018.

Executive power follows legislative field; LG has no independent decision-making power.

Any matter does not mean every matter; dialogue and constitutional trust come first.

Reference to President is exceptional, reasoned and non-mechanical.

Limit: reserved fields and parliamentary supremacy remain.

PANEL 09/12 - DELHI SERVICES CURRENT SEQUENCE

11 May 2023: Entry 41 services within Delhi field outside reserved subjects.

Triple chain: civil servant -> minister -> Assembly -> electorate.

Act 19 of 2023: NCCSA = CM + Chief Secretary + Principal Home Secretary.

Majority recommendation; LG may return with reasons; final on persistent difference.

7 Sep 2026: Act operative; constitutional merits challenge unresolved.

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PANEL 10/12 - PUDUCHERRY

Article 239A + 1963 Act: 30 elected + up to 3 Central nominees.

Section 18 applicable State/Concurrent fields; section 21 parliamentary priority.

Sections 44-50 advice, differences, ministers, business and Presidential control.

K. Lakshminarayanan 2018: nomination upheld; no mandatory CM concurrence;

nominees vote fully, including budget/no-confidence. 239B ordinance; 240 conditional.

PANEL 11/12 - J&K, LADAKH AND CURRENT STATUS

J&K: sections 13/14 Assembly; section 32 excludes public order + police, not land.

Sections 35 Parliament priority, 52 ordinance, 53 CoM/LG, 73 failure, 75 common HC.

2024 election -> functioning 90-constituency elected Assembly and Council.

In Re Article 370: elections by 30 Sep 2024; Statehood earliest, no fixed date.

7 Sep 2026 J&K remains UT. Ladakh: no Assembly; section 58 regulation route.

PANEL 12/12 - TRAPS, REFORM AND ANSWER SPINE

Traps: 8 not 9; DNHDD one; 3 legislatures; 239AB != 239B != 240.

Delhi excludes 3; J&K excludes 2; Chandigarh outside 240; Ladakh via section 58.

Current Delhi answer = 2018 + May 2023 + Act 19 + pending-challenge qualification.

Reform: exact field maps, written reasons, time limits, officer-budget accountability.

Answer: define -> source -> field -> mechanism -> case/current law -> qualify -> reform.